

		Plaintiff to give notice.
9	Dong vs. Bivens	<u>Motion for Leave to Amend (re First Amended Complaint)</u> The court GRANTS Plaintiff PHIL DONG’s unopposed motion for leave to file a proposed First Amended Complaint (FAC). Plaintiff appears to have complied with the procedural requirements of Rule 3.1324 of the California Rules of Court. (See Travieso Decl., ¶¶ 5-10, Exhs. 1-2.) The Proposed FAC deletes the “loss of use of real property” claim, adds a quiet title cause of action, deletes references to the dismissed Defendant California Association of Realtors, adds allegations explaining the role of each defendant in the transaction; and specifies against which defendant(s) each cause of action is pled. (See Travieso Decl., Exh. 2.) The court finds Plaintiff’s proposed FAC promotes resolution of the full dispute between the parties and clarifies the claims and allegations plead against each defendant. No later than five (5) court days from the hearing, Plaintiff Dong shall file and serve the Proposed FAC (attached as Exhibit 1 to the Travieso Declaration). Plaintiff to give notice. 2. Upcoming CMC In light of the above ruling, the court CONTINUES the scheduled 8/10/26 Case Management Conference to 11/30/26, at 10:00 am in Dept. W8. All appearing parties SHALL file and serve a timely case management statement at least 15 calendar days prior to the continued hearing as required by the rules, including California Rules of Court rule 3.725 and Local Rule 369.